

An Act

ENROLLED SENATE
BILL NO. 1226

By: Rader of the Senate

and

Tedford of the House

An Act relating to motor vehicles; amending 47 O.S. 2021, Sections 10-103 and 10-106, which relate to accidents; expanding criteria by which a person must remain at scene or make notification of certain accident; making language gender neutral; updating statutory language; and providing an effective date.

SUBJECT: Vehicle accidents

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 10-103, is amended to read as follows:

Section 10-103. The driver of ~~any~~ a vehicle involved in an accident resulting ~~only~~ in damage to property or a vehicle ~~which~~ that is driven or attended by any person shall immediately stop ~~such vehicle~~ at the scene of ~~such~~ the accident or as close ~~thereto~~ to the scene of the accident as possible ~~but~~ or shall ~~forthwith~~ immediately return to ~~and in every event~~ the scene of the accident. The driver shall remain at the scene of ~~such~~ the accident until he or she has fulfilled the requirements of Section 10-104 of this title. Every such stop shall be made without obstructing traffic more than is necessary. Any person failing to stop or comply with ~~said~~ the requirements ~~under such circumstances~~ of this section shall, upon conviction, be guilty of a misdemeanor ~~and upon conviction thereof shall be punished~~ punishable by a fine not to exceed Five Hundred Dollars (\$500.00), or by imprisonment in the county jail for not more than one (1) year, or by both such fine and imprisonment. In

addition to the criminal penalties imposed by this section, any person violating the provisions of this section shall be subject to liability for damages in an amount equal to three times the value of the damage caused by the accident. ~~Said~~ Such damages shall be recoverable in a civil action. Nothing in this section shall prevent a judge from ordering restitution for any damage caused by a driver involved in an accident provided for in this section.

SECTION 2. AMENDATORY 47 O.S. 2021, Section 10-106, is amended to read as follows:

Section 10-106. The driver of any vehicle involved in an accident resulting only in damage to fixtures, fences, or other property legally upon or adjacent to a public or private road, street, or highway shall take reasonable steps to locate and notify the owner or person in charge of such property of such fact and of the driver's name and address and of the registration number of the vehicle being driven and shall upon request exhibit a driver license and security verification form, as defined in Section 7-600 of this title, and shall make report of such accident when and as required in Section 10-108 of this title.

Any person failing to stop or comply with ~~said~~ such requirements under such circumstances shall, upon conviction, be guilty of a misdemeanor punishable by a fine not to exceed Five Hundred Dollars (\$500.00), or by imprisonment in the county jail for not more than one (1) year, or by both such fine and imprisonment. Nothing in this section shall prevent a judge from ordering restitution for any damage caused by a driver involved in an accident provided for in this section.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 18th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____